

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 8, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Pete Laybourn (via Zoom), Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Absent: Richard Johnson. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on March 25, 2024. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a retail liquor license transfer of location application filed with the City Clerk’s Office for Scooters Scoreboard LLC d/b/a Scooter’s Scoreboard Bar, from 507 E. Lincolnway to 619 E. Lincolnway, Cheyenne, WY. Comment was made by the following member of the governing body: Mr. Segrave. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing for a retail liquor license transfer of ownership application filed with the City Clerk’s Office for Wyoming Pipe Dreams, Inc. d/b/a The Lamp Lounge & Drive Through Package Liquor Store, 101 W. 6th St., Cheyenne, WY (license currently held by W.W. Enterprises, Inc. d/b/a The Lamp Lounge & Drive Through Package Liquor Store). Public comment was made by: Jon Coverdale. Comment was made by the following member of the governing body: Dr. Aldrich. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statue §15-1-402 exist for High Plains Road beginning at South Greeley Highway and terminating at Division Avenue. Public comment was made by: Brad Emmons, AVI. Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statue §15-1-402 exist for about 7.3 acres of land and the Laramie Street right-of-way located between Saratoga St. and Whitney Road. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook and Mr. Esquibel. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statue §15-1-402 exist for about 1.60 acres of land located northeast of the intersection of Dell Range Blvd. and Griffith Ave. There being no comment or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential – Medium Density for land located south of West 5th Street between Patton Avenue and Snyder Avenue. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4556)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the I-25 and I-80 Interchange adjacent to Roundtop Rd. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4557)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AG Agricultural, LR Low-Density Residential, MR Medium-Density Residential, HI Heavy Industrial, and CB Community Business for land annexed to the City of Cheyenne located southwest of the I-25 and I-80 Interchange adjacent to Roundtop Road. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present. (#4558)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification of AG Agricultural, LR Low-Density Residential, MR Medium-Density Residential, HI Heavy Industrial, and CB Community Business to AG Agricultural and LI Light Industrial for land located southwest of the I-25 and I-80 Interchange adjacent to Roundtop Rd. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present. (#4559)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located at Lot 2, Block 1, Q-B Subdivision – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, High Plains Road beginning at South Greeley Highway and terminating at Division Avenue – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located east of Saratoga Street and west of Whitney Road – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AR Agricultural Residential for land annexed to the City of Cheyenne located east of Saratoga Street and south of and adjacent to Laramie Street – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located at 4204 Dell Range Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of City MR Medium Density Residential for land annexed to the City of Cheyenne located at 4204 Dell Range Boulevard – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business to P Public District for land located at Lot 1, Cheyenne Ice & Events Center, 2nd Filing located at 1530 West Lincolnway – referred to Public Services Committee. (Sponsor – Mr. Roybal)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Cheyenne Terrace, 2nd Filing, City of Cheyenne, Laramie County, Wyoming (located east of Converse Avenue and south of Storey Boulevard). *(CLERK’S NOTE: the location of this Final Plat is in fact “south of West 5th Street between Patton Avenue and Snyder Avenue. A substitute correcting the entitlement language will be presented prior to final approval).* Mr. Roybal moved to adopt, seconded by Mr. White. Mr. Roybal moved to amend by substitute dated April 1, 2024, seconded by Mr. White. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#6397)

RESOLUTION – Requiring the study and submittal of a report to the Governing Body analyzing the best avenue for correcting deficiencies and improving and maintaining the west entryway to the Municipal Building to enhance public perception and experience. Mr. Roybal advised there was no recommendation from Public Services Committee. Mr. Roybal moved to adopt, seconded by Mr. Segrave. Motion failed. Voting “no” – all members of the governing body present. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook and Mr. Segrave.

[CA] RESOLUTION – Expressing the support of the Governing Body for the adoption of the Cheyenne/Laramie County Emergency Operations Plan – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Carey Cottages, City of Cheyenne, Laramie County, Wyoming (located southeast of the intersection of Grove Drive and Cheyenne Street) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Sun Rise Hills North Subdivision, 3rd Filing, City of Cheyenne, Laramie County, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Roybal)

Professional Services Agreement between the City of Cheyenne and Atmos Technologies for a supply of alternative daily cover foam for the City of Cheyenne Happy Jack Landfill (Solid Waste Fund). Reporting for Finance Committee, Dr. Aldrich advised there was no recommendation from Finance Committee. Dr. Aldrich moved to approve, seconded by Mr. Segrave. Comment was made by the following member of the governing body: Dr. Aldrich. Motion failed. Voting “no” – all members of the governing body present.

[CA] Grant Agreement for Wyoming Outdoor Recreation grant funds between the City of Cheyenne and State of Wyoming, Department of State Parks and Cultural Resources, Division of State Parks, Historic Sites and Trails for the Belvoir Ranch Trail (Belvoir Ranch Recreation Fund and Wyoming Outdoor Recreation Grant). Motion (per Consent Agenda) carried. (#7949)

[CA] Professional Services Agreement between the City of Cheyenne and DHM Design PC for engineering services for the 15th Street Master Plan Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7531 between the City of Cheyenne and Waste Management of Colorado, Inc. for recycling services through April 15, 2025 (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$250,000.00). (#7531)

[CA] Consideration of Bid #E-11-24 for six (6) trucks for the City of Cheyenne (mid-size, 1 ton, cab & chassis) (2019-2022 Optional 1% Sales Tax Fund, 2021 Specific Purpose Option Tax Fund, and Weed & Pest Fund). Motion (per Consent Agenda) carried (accepted the bid from Ken Garff Cheyenne in an amount not to exceed \$364,251.00).

[CA] Consideration of Bid #E-13-24 for three (3) motorcycles for the City of Cheyenne Police Department (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted the bid from PS CO1, LLC, d/b/a Northern Colorado Powersports in an amount not to exceed \$76,493.34).

[CA] Consideration of Bid #S-8-24 for an agreement between the City of Cheyenne and JTL Group Inc. d/b/a Knife River, for the Powderhouse & Carlson Intersection Signal Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted the bid in an amount not to exceed \$1,229,369.00). (#7950)

[CA] Consideration to Purchase for an agreement between the City of Cheyenne and Atmos Technologies, for providing daily cover on the active working face of the City of Cheyenne Happy Jack Landfill (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-2-24 for an agreement between the City of Cheyenne and Asphalt Preservation, LLC, for the 2024 Surface Seal Project #1 (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-14-24 for 1.5 cubic yard rear-load dumpsters (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-15-24 for furnishing Bituminous Asphalt Hot Mix, Tack Oil, and Cold Mix on an annual basis, for the City of Cheyenne, Street & Alley Division (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's Office for Rebecca Andrew Ventures, Inc. d/b/a Mr. Jim's Pizza, 4001 Laramie St., Unit A, Cheyenne, WY. Motion (per consent agenda) carried.

[CA] Request to extend the time period in which The Blue Stem Wine House LLC has to become operational for an additional year for their winery license located at 1909 Warren Ave., Cheyenne, WY. Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

Announcement was made of a Public Hearing to be held April 22, 2024 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for the City's Annual Action Plan for Program Year 2024 prepared by the Cheyenne Housing and Community Development Division.

The following members of the governing body made comments under other business: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Segrave and Mr. White.

Mr. Esquibel moved to meet in executive session Pursuant to Wyoming Statutes §16-4-405(a)(vii), seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: Stefanie Boster, City Attorney; Robin Lockman, City Treasurer; Andrew Dykshorn, Deputy Chief, Cheyenne Fire Rescue; Kipp Sanders, Battalion Chief, Cheyenne Fire Rescue; Charles Bloom, Planning & Development Director and Kris Jones, City Clerk.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:06 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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